TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

May 18, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and

- For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at **https://www.occourts.org/media-relations/civil.html** before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Daichendt v. Aviation Consultants, Inc. 2023-01306989	Defendant ACI Jet Orange County, LLC's motion for Sanctions pursuant to Code Civ. Proc. §128.7 is DENIED. Moving Defendant seeks sanctions against Plaintiff Joseph Daichendt arising out of Daichendt's filing of a Motion for Reconsideration of the Court's 11/18/25 Order regarding the Parties' cross Motions for Summary Adjudication. Moving Defendant has complied with the safe harbor provision by serving a copy of the notice of motion and moving papers to Daichendt more than 21 days before the filing of the motion. (See Code Civ. Proc. §128.7, subd. (c); see also ROA 1271 [Proof of Service on Daichendt dated 1/29/26] and ROA 1273 [Motion for sanctions filed 2/24/26].) However, Moving Defendant has failed to show that Daichdent's motion was frivolous under the law so as to support an award of sanctions under Code Civ. Proc. §128.7. "A claim is factually frivolous if it is 'not well grounded in fact' and is legally frivolous if it is 'not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.' [Citation.] In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if 'any reasonable attorney would agree that [it] is totally and completely without merit.'" (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 189.) Here, Moving Defendant has failed to show that the motion for reconsideration was so legally frivolous that it was objectively unreasonable to file the motion. Even though Plaintiff did not prevail on the merits of the motion for reconsideration, Plaintiff has articulated a reasonable ground to file the motion -- to ensure that the record is complete in the event of an appeal. Sanctions pursuant to Code Civ. Proc. §128.7 "should be utilized only in 'the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose." (*Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1120-1121.) Moving Defendant has not satisfied this standard. Plaintiff shall provide notice of this ruling.

51.	Horste v. SC Investments LLC 2023-01302494	Attorney Ali Kamarei and Auto Legal Group, LLC's motion to be relieved as counsel of record for defendant/cross-complainant SC Investments, LLC is GRANTED as it relates to this forum, effective upon the filing of the proof of service of the signed order upon the client. A status conference is set for July 24, 2026 at 9:00 a.m. in Department C28. As SC Investments, LLC cannot appear in this court without counsel, it shall appear the scheduled date with new counsel. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) Failure to do so will result in the imposition of sanctions against SC Investments, LLC. Moving Attorney shall provide notice of this ruling.
52.	Jimenez v. Richardson 2025-01519604	Defendant Swish Studios, LLC's (Swish) demurrer to complaint is SUSTAINED, with 10 days leave to amend. <u>7th-9th causes of action for negligent hiring, supervision, and retention</u>. The complaint fails to state facts sufficient to constitute the 7th, 8th, and 9th causes of action for negligent hiring, supervision, and retention. (See CACI No. 426 [elements]; *Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139-1140 [liability for negligent hiring, supervision, and/or retention is one of direct liability for negligence, not vicarious liability; "[n]egligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes' "]; *Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902 [plaintiff must establish the employer had prior knowledge of the actor's propensity to do the bad act].) While the complaint alleges "[defendant Darnell K.] Richardson had a known criminal record prior to his employment, which a background check would have revealed" (Compl. ¶ 12), not all criminal histories show a predisposition to commit violent attacks. <u>10th cause of action, negligent infliction of emotional distress (NIED)</u>. The complaint fails to state facts sufficient to constitute the 10th cause of action for NIED. (See *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1071-1074 [a cause of action for NIED is not an independent tort but simply the tort of negligence, the elements of which are the existence of a duty, breach, causation, and damages].) <u>11th cause of action, vicarious liability</u>. The complaint fails to state facts sufficient to allege vicarious liability. Specifically, it fails to allege facts sufficient to show Richardson was acting

		within the course and scope of his employment with Swish at the time of the incident. "Despite the broad range of acts that may give rise to the imposition of vicarious liability, before such liability will be imposed on the employer there must be a connection between the employee's intentional tort and the employee's work." (*Perry v. County of Fresno* (2013) 215 Cal.App.4th 94, 101 (*Perry*).) "The law is clear that an employer is not strictly liable for all actions of its employees during working hours. (*Farmers Ins. Group v. County of Santa Clara* (1995) 11 Cal.4th 992, 1004, 47 Cal.Rptr.2d 478, 906 P.2d 440 (*Farmers*).) Rather, there must be a causal nexus between the tort and the employee's work, i.e., the tort ... must be engendered by or arise from the work. ([*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291,] 297-298, 48 Cal.Rptr.2d 510, 907 P.2d 358.) 'That the employment brought tortfeasor and victim together in time and place is not enough.' (*Id.* at p. 298, 48 Cal.Rptr.2d 510, 907 P.2d 358.)" (*Perry,* at p. 101.) "For a causal nexus to exist 'the incident leading to injury must be an "outgrowth" of the employment [citation]; the risk of tortious injury must be " 'inherent in the working environment' " [citation] or " 'typical of or broadly incidental to the enterprise [the employer] has undertaken [citation]. ' " ' (*Lisa M., supra,* 12 Cal.4th at p. 298, 48 Cal.Rptr.2d 510, 907 P.2d 358.) In other words, the risk of the tort must be a generally foreseeable consequence of the enterprise. (*Id.* at p. 300, 48 Cal.Rptr.2d 510, 907 P.2d 358.) If the employee acts out of personal malice unconnected with the employment, the employee is not acting within the scope of employment. (*Farmers, supra,* 11 Cal.4th at p. 1005, 47 Cal.Rptr.2d 478, 906 P.2d 440.) The mere fact that an employee has an opportunity to abuse facilities or authority necessary to the performance of that employee's duties does not render the employer vicariously liable. (*Id*. at p. 1006, 47 Cal.Rptr.2d 478, 906 P.2d 440.) A tort will not be considered engendered by the employment unless its motivating emotions were fairly attributable to work-related events or conditions. (*Lisa M., supra,* at p. 301, 48 Cal.Rptr.2d 510, 907 P.2d 358.)" (*Perry,* at pp. 101-102.) Swish shall give notice of this ruling.
53.	Bales v. Belenardo 2021-01201005	Defendant Susan Belenardo's motion to vacate judgment and enter a different judgment is DENIED. Defendant moves under C.C.P. § 663. That section states (in relevant part):

		A judgment . . . when based upon . . .the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court . . . for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment: (2) a judgment. . . not consistent with or not supported by the special verdict. In this case, there was a jury trial. The jury found that defendant engaged in conduct with malice. (ROA 923). Thereafter, the jury awarded punitive damages. (ROA 924). Therefore, the judgment rendered was consistent with the special verdict. Defendant's motion argues that there was not sufficient evidence to support the award of punitive damages due to plaintiff's failure to present sufficient evidence of defendant's overall financial condition. But Section 663 does not allow the court to re-weigh evidence. Section 663 "authorizes simply the substitution of the judgment that should have been given as a matter of law upon the findings of fact in the case where the judgment already given is an incorrect conclusion from such findings. The court cannot on such a motion in any way change any finding of fact. The sole remedy in the trial court of a party who is aggrieved by any finding of fact is a motion for a new trial." *Jones v. Clover* (1937) 24 Cal. App. 2d 210, 212. Here, the "judgment for [plaintiff] was consistent with and fully supported by the jury's special verdict which found [defendant] was engaged [with malice] at the time of the accident. The special verdict itself cannot be attacked under Code of Civil Procedure section 663." *Acosta v. Los Angeles Unified School Dist.* (1995) 31 Cal. App. 4th 471, footnote 7. Section 663 can only be used where "the trial judge draws an incorrect legal conclusion or renders an erroneous judgment upon the facts found by [the jury] to exist." *County of Alameda v. Carleson* (1971) 5 Cal. 3d 730, 738. Here, the judgment is consistent with the special verdict rendered by the jury. The motion is therefore DENIED. Plaintiff shall give notice of this ruling.
54.	Mutton v. Osborne Homes, Inc.	Defendants Osborne Homes, Inc. and Michael Osborne's motion to compel plaintiff Matthew Mutton to submit his claims against them to binding contractual arbitration is GRANTED.

	2025-01516957	Under Code of Civ. Proc. §1281.2, the first thing the Court must decide is whether there was an agreement to arbitrate. (*Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1169.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and "[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51 [cleaned-up].) Defendants submitted the TriNet dispute resolution protocol that contained an arbitration clause. In response, plaintiff presented evidence that TriNet ceased serving as the PEO for defendants prior to the dispute that gives rise to this litigation. Plaintiff argues that the TriNet agreement was no longer in effect, citing *Litton Financial Printing v. NLRB* (1991) 501 U.S. 190, 205-006. ("A postexpiration grievance can be said to arise under the [expired] contract only where it involves facts and occurrences that arose before expiration, where an action taken after expiration infringes a right that accrued or vested under the agreement, or where, under normal principles of contract interpretation, the disputed contractual right survives expiration of the remainder of the agreement.") Defendants counter that the TriNet arbitration agreement had a survivorship clause, which places plaintiff's claims within the type of disputes that *Litton* permits. The survivorship clause reads: "This DRP will survive the termination of the employment relationship. With only the exceptions described below in subsection (b), arbitration will be used instead of going before a court (for a judge or jury trial) and even in the situations described below, NO JURY TRIAL WILL BE PERMITTED (unless applicable law does not allow enforcement of a pre-dispute jury trial waiver in the particular circumstances presented)." The plain reading of this text shows that arbitration would be compelled in a situation where the employee's employment with OHI ends. Such is the case here.

		Thus, defendants have demonstrated that the expired agreement that contained the arbitration clause remains in effect based on the language quoted above, and the reasoning of *Litton.* Plaintiff also argues novation, but has failed to demonstrate that the new agreement between ADP, plaintiff and defendants involves the same parties as the TriNet agreement. Civ. Code § 1531. Defendants' evidentiary objections are OVERRULED. Plaintiff is ordered to arbitrate his claims. This matter is STAYED pending completion of the arbitration. The case management conference is vacated. The court sets a status conference regarding the arbitration for January 22, 2027 in Department C28 at 9:00 a.m. Five days before the status conference the parties are ordered to submit a joint statement concerning the arbitration. Defendants shall give notice of this ruling.
55.	Rosas v. American Honda Motor Co., Inc. 2025-01455312	Defendant American Honda Motor Co., Inc.'s Motion to Tax Costs is GRANTED in part and DENIED in part. Defendant seeks an order striking Plaintiffs' Memorandum of Costs (seeking $1,036.65 in costs) in its entirety or, alternatively, taxing it by $323.30. Code of Civil Procedure § 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure Section 1033.5 sets forth the items that are allowable as costs. Items not mentioned in section 1033.5 may be allowed or denied in the court's discretion. Additionally, Code of Civil Procedure section 1033.5(c) states that allowable costs shall be reasonable in amount and "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (Ibid.) But conclusory assertions alone are not enough to cause this

		shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (*Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557.) Defendant first contends that the entire memorandum of costs should be stricken because it is not supported by "adequate documentation." This argument fails because Plaintiffs were not required to support their verified memorandum of costs with "documentation" or evidence in the first instance. (See ROA 51.) Rather, if the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776.) Defendant next argues that any post-998 offer costs--costs incurred after 8/13/25 – should be stricken from Plaintiffs' Memorandum of Costs. Plaintiffs agree. Plaintiffs, however, argue that some of these costs were mandatory filings incurred to effectuate the settlement and are recoverable as a matter of law because they were reasonably necessary to bring the case to a conclusion. These costs include the following: • September 15, 2025 – Notice of Settlement – $2.25 • September 15, 2025 – Notice of Settlement e-filing or service – $10.25 • September 16, 2025 – Courtesy Copy of Notice of Settlement – $35.00 The court agrees that such costs were reasonably necessary to effectuate the settlement and will allow such costs to be recovered. Plaintiffs have not objected to the remainder of the costs Defendant contends were incurred post-998 offer. Accordingly, the court GRANTS the motion, in part, and taxes Plaintiffs' Memorandum of Costs in the amount of $275.80 ($323.30-$47.50). Plaintiffs are awarded $760.85 ($1036.65-$275.80) in costs. The court continues the order to show cause regarding dismissal of this settled case to July 17, 2026 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.

56.	Duffy v. Hyundai Motor America 2025-01481786	Defendant Hyundai Motor America's demurrer to plaintiff Colin F. Duffy's First Amended Complaint [FAC] is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) The 5th cause of action for fraudulent inducement – concealment is sufficiently alleged. (*Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 665-666 [concealment elements]; *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [outside of duties imposed by statute or arising out of a confidential / fiduciary relationship, a duty to disclose may arise where "the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff," or from a "preexisting relationship between the parties, such as 'between seller and buyer ... or parties entering into any kind of contractual agreement;" internal citations omitted]; Complaint, ¶¶ 7 [warranty]; ¶¶ 48-52 [concealment of material facts regarding exclusively known defects and describing same]; 54 [duty to disclose]; 50-53, 55 [scienter]; ¶¶ 56, 57 [reasonable reliance]; ¶ 59 [proximately caused damages].) Defendant's motion to strike the punitive damages allegations in the FAC is DENIED. As the 5th cause of action is sufficiently pled, it supports punitive damages allegations. (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610.) Moving defendant shall file an Answer to the FAC within 10 days. The case management conference is continued to September 28, 2026 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	Plaintiffs H. Newell Williams, Jr. and Kimberly Clark-Williams' motion for leave to augment and/or amend their expert witness designation is GRANTED, on the conditions discussed below. (Code Civ. Proc., §§ 2034.610 [authorizing motion], 2034.620 [factors].) The court orders that plaintiffs are granted leave to amend their expert witness designation, to: (1) substitute James Gardner for David Spiegel; and (2) augment the subject matter of Grant Teeple's retention and testimony, as set forth in plaintiffs' amended expert designation (Garrison Decl., Ex. D). Said relief is conditioned upon: (1) plaintiffs making both Gardner and Teeple available for deposition prior to 6-5-26; and (2) plaintiffs shall be responsible for the costs of any

		additional deposition of Teeple and Gardner, including expert fees. (Code Civ. Proc. § 2034.620, subd. (d).) Moving party has shown that expert witness amendment / augmentation is due to mistake, inadvertence, surprise, or excusable neglect; that plaintiffs have made and/or will make the experts available for deposition; and that a proposed amended witness list has been served. (Code Civ. Proc., § 2034.620, subd. (c)(2); Garrison Decl., ¶¶ 3-5, 11.) The court has considered the factors set forth in Code Civ. Proc. § 2034.620, and has determined that granting the requested relief on the conditions set forth above is in the interest of justice. Moving parties shall give notice of this ruling.
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60.	Bianca v. Panda Motors, Inc. 2023-01300577	Plaintiff Guiseppe Bianca's motion to strike the Memorandum of Costs filed by defendant Panda Motors, Inc. dba California Motors Direct is GRANTED. California Rules of Court, Rule 3.1700(a)(1) establishes the fundamental timing requirement: "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." When service is by mail, the time to file the memorandum is extended by five calendar days. Ca. Civ. Pro. § 1013. Judgment was entered on December 2, 2025 (ROA 145.) Notice of Entry of Judgment was filed and served by Panda on December 5, 2025 (ROA 154.) As such, the Memorandum of Costs should have been filed no later than December 26, 2025 (15 days plus 5 for mailing.) It was not filed until February 5, 2026 (ROA 154.) The time provisions for filing a memorandum of costs, while not jurisdictional, are mandatory, and a party who fails to timely file is deemed to have waived the right to recover costs if the opposing party timely moves to strike. *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924.

		As plaintiff moved to strike, the memorandum of costs is ordered STRICKEN. Plaintiff shall give notice of this ruling.
61.		
62.	Ozbasaran v. Tesla, Inc. 2025-01490249	Defendant Tesla, Inc.'s Motion to Compel Arbitration is GRANTED. Plaintiff's Objections to the Declaration of Raymond Kim are SUSTAINED as to Objection Nos. 1, 4 and 5. Objection Nos. 2, 3, 6, 7 and 8 are OVERRULED. Defendant's request for judicial notice is GRANTED. Tesla moves to compel Plaintiff Orhan Ozbasaran arbitration pursuant to the Federal Arbitration Act ("FAA"), 9 U.S.C. §§ 1-16, and Code of Civil Procedure section 1281 et seq. A court's role in considering a petition to compel arbitration under the FAA is limited to "determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms." (*Chiron Corp. v. Ortho Diagnostic Sys. Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) **Existence of Arbitration Agreements** Under Code of Civ. Proc. §1281.2, the first thing the Court must decide is whether there was an agreement to arbitrate, a meeting of the minds. (*Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1169.) This analysis is no different under the Federal Arbitration Act ("FAA") – there must be an agreement in writing to submit a controversy to arbitration. (9 U.S.C.A. § 2.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and "[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the

		evidence." (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51 [cleaned-up].) Tesla has presented two arbitration agreements. The Motor Vehicle Order Agreement ("Order Agreement") and the Retail Installment Sales Contract ("RISC") which both contain arbitration agreements. Thus, Tesla has met its burden of production. Plaintiff, however, argues the Order Agreement and RISC are not valid because he did not assent to the arbitration agreement in the Order Agreement and he did not sign the RISC. As evidence, Plaintiff filed an opposing declaration. An opposing party can challenge the authenticity of the agreement by testifying under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165; see also *Garcia*, supra, 102 Cal.App.5th at 52.) **Order Agreement** Plaintiff states he "did not sign or initial anything agreeing to an arbitration provision associated with [his] order." (Ozbasaran Decl., ¶ 3.) The Order Agreement attached to Mr. Kim's declaration does not bear Plaintiff's signature and there is no electronic information to indicate it was agreed to by Plaintiff. "[I]nterpretation of the arbitration agreement is governed by state law principles.... Under California law, ordinary rules of contract interpretation apply to arbitration agreements. The fundamental goal of contractual interpretation is to give effect to the mutual intention of the parties. If contractual language is clear and explicit, it governs." (Id. at 176.) Under California contract law, "mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual unless the parties all agree upon the same thing in the same sense." (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293 [citation modified].) "This principle of knowing consent applies with particular force to provisions for arbitration, including arbitration provisions contained in contracts purportedly formed over the internet. In the context of an internet transaction, in the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions on the website—including, for example, checking boxes and clicking buttons—but any such

		action must indicate the parties' assent to the *same thing*, which occurs only when the website puts the consumer on constructive notice of the contractual terms. Thus, in order to establish mutual assent for the valid formation of an internet contract, a provider must first establish the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting *to those very terms* when checking a box or clicking on a button. And the full context of any transaction is critical to determining whether any particular notice is sufficient to put a consumer on inquiry notice of contractual terms contained on a separate, hyperlinked page." (Id. at 1294 [citation modified].) A clickwrap format is a form of internet agreement that is generally regarded as enforceable because it requires the user to manifest assent to the website's terms of use "by clicking an 'I agree' or 'I accept' button, with a link to the agreement readily available." (Ibid.) But simply characterizing an agreement as a clickwrap does not resolve whether a binding agreement exists. "[I]t is the degree of notice provided, not the label, that is determinative." (Ibid.) The Court of Appeal in *Herzog* found that checking a box stating, "I agree to Terms of Use" did not provide conspicuous notice of the arbitration agreement because directly above the box it expressly told users, "By ticking the boxes below you understand that your personal information, including your sensitive health information, will be collected, used and shared consistently with the Privacy Policy and Terms of Use." (Id. at 1297-1298.) Under these circumstances, the court could not "conclude that a reasonably prudent user in the position of the plaintiffs would understand after reading this text that the Terms of Use were intended to govern any matters other than the scope of the user's waiver of privacy rights and the management of the user's personal information." (Id. at 1297.) Here, Tesla states that Plaintiff placed the order for the Subject Vehicle by clicking a button that read "Place Order" on Tesla's website. (Kim Decl., ¶ 4.) Immediately below the "Place Order" button appears text in bold font advising Plaintiff that by clicking "Place Order" he would be agreeing to the terms and conditions of the Order Agreement. (Ibid.) The Order Agreement appeared in bold font and was displayed as a hyperlink. (Ibid.) If Plaintiff clicked on the hyperlink, a new window would have opened revealing the agreement or policy described in the hyperlink. (Ibid.)

		Similar to the facts in *Herzog*, there no evidence that the screen where the "Place Order" box was located included a summary of the general terms and conditions covered by the Order Agreement that would have placed Plaintiff on notice of an agreement to arbitrate. Moreover, there is no signature, initial, or any other electronic information demonstrating Plaintiff's assent to the terms of the Order Agreement. And, more importantly, there is no evidence Plaintiff was required to actually view the hyperlinked Order Agreement in order to complete his purchase. Based on the foregoing, Tesla has not demonstrated the Order Agreement constituted a mutual agreement to arbitrate. **RISC** The next issue to consider is whether the arbitration agreement in the RISC is enforceable. Generally speaking, a defendant is "not required to authenticate [plaintiff's] signature on [the] arbitration agreement as a preliminary matter in moving for arbitration," and has no obligation to do so unless "the authenticity of the signature" is actually challenged. (*Ruiz v. Moss Bros. Auto Grp., Inc.* (2014) 232 Cal.App.4th 836, 846.) Here, Plaintiff challenges the authenticity of his electronic signature on the RISC. A party's consent to arbitration may be evidenced by the party's electronic signature on the agreement. (*Espejo v Southern Cal. Permanente Med. Group* (2016) 246 Cal.App.4th 1047, 1058–1060 (sufficient proof that employee signed arbitration agreement by electronic signature; CC § 1633.9 addresses how proponent of electronic signature may authenticate it.) Civil Code section 1633.9 addresses how an electronic signature can be authenticated—i.e., establish that the signature in question is, in fact, the signature of the person as claimed by the person or entity seeking to demonstrate the validity of a document. Section 1633.9 provides: "An electronic record or electronic signature is attributable to a person if was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (Civ. Code § 1633.9(a).) Courts have held that the " '[t]he burden of authenticating an electronic signature is not great.'" (*Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067.) "The party seeking authentication may carry its burden 'in any manner,' including by presenting

		evidence of the contents of the contract in question and the circumstances surrounding the contract's execution." (*Fabian*, supra, 42 Cal.App.5th at 1068.) "A proponent seeking to authenticate an electronic signature must show the electronic signature 'was the act of the person,' which could be shown 'in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.' For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (*Garcia*, supra, 102 Cal.App.5th at 53 [cleaned-up].) In this case, the RISC contains typed names with the same script font used for all signatures, including Plaintiff and the president of Tesla Motors, Inc. Plaintiff states he did not sign any "paperwork" when he picked up his Tesla and did not authorize his electronic signature to be applied to any paperwork. (Ozbasaran Decl., ¶ 6.) He simply picked up his vehicle and no arbitration agreement was discussed with him at that time. On reply, Mr. Kim provides a supplemental declaration providing additional information on how Tesla obtains the electronic signature. In order to execute the RISC, Plaintiff was first prompted on their mytesla.com account to review the Consent to Electronic Transactions document and to select "Accept" if they agreed, which Plaintiff did here. Once Plaintiff selected "Accept" the RISC is generated. The RISC is not generated unless a consumer selects "Accept" to the Consent to Electronic Transactions. Once the RISC is generated, the buyer receives a message to log in to their account to review and electronically execute the RISC. In order to do so, they must enter their date of birth for verification. Once the buyer electronically confirms that they accept the terms of the RISC, their digital signature is applied to the documents, as was done by Plaintiff on September 9, 2023. The executed RISC then becomes available on their mytesla.com account. Only after a RISC is executed can the buyer then physically accept delivery of the vehicle. Plaintiff would never have been able to physically accept delivery of a vehicle without having completed these steps.

Plaintiff was provided with an opportunity to respond to Mr. Kim's supplemental declaration, and did not do so.

Therefore, the court finds Tesla has provided sufficient evidence that the electronic signature on the RISC was authorized by Plaintiff, and that the arbitration agreement in the RISC constituted a mutual agreement to arbitrate.

The arbitration agreement also encompasses the dispute in this case as it covers any dispute relating to Plaintiff's "credit application, purchase or condition of this vehicle."

Plaintiff argues that the arbitration agreement is unconscionable. (See *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493 (*Ramirez*) [unconscionability, generally]; *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243 [same].)

There is a low degree of procedural unconscionability here as the RISC appears in a standardized, pre-printed form offered by the party with superior bargaining power on a take-it-or-leave-it basis. " '[T]he adhesive nature of" an arbitration agreement "is sufficient to establish some degree of procedural unconscionability.' [Citations.]" (*Swain v. LaserAway Medical Group, Inc.* (2020) 57 Cal.App.5th 59, 67-68.)

But plaintiff has failed to establish any substantive unconscionability. (See *Baltazar, supra,* 62 Cal.4th at pp. 1243-1244 [both procedural and substantive unconscionability must be present before court may refuse to enforce a contract based on the doctrine of unconscionability]; *Ramirez, supra,* 16 Cal.5th at pp. 492-493 [although adhesion contracts are procedurally unconscionable, they nevertheless "remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid"]; see also *id.* at pp. 494-495 [substantive unconscionability, generally].)

Specifically, plaintiff contends the RISC is substantively unconscionable because it is one-sided. (Opp. at p. 11.) This argument fails. The RISC applies to both plaintiff and defendant. "Any claim or dispute . . . between you and us. . . shall at your or our election be resolved by neutral binding arbitration." (RISC at p. 5.)

Accordingly, the motion to compel arbitration is GRANTED. Plaintiff shall proceed with plaintiff's claims in the manner described in the arbitration agreement.

		The case management conference is VACATED. The court sets a status conference regarding the arbitration for January 22, 2027 in Department C28 at 9:00 a.m. Five days before the status conference the parties are ordered to submit a joint statement concerning the arbitration. Defendant shall give notice of this ruling.
63.	Catena v. Wade-Northern 2025-01504829	Defendants Rose Wade-Northen and Patrick Northen's motion for stay is DENIED. (See *Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 886-889 (*Avant*) [factors]; *People ex rel. Harris v. Rizzo* (2013) 214 Cal.App.4th 921, 952.) Defendants fail to identify a single Penal Code section in their moving papers under which they may face potential criminal liability until their reply brief, where they identify Penal Code section 278.5 as the source of their potential exposure. Penal Code section 278.5 sets forth the crime of child custody deprivation. (See Pen. Code, § 278.5; see also *People v. Jo* (2017) 15 Cal.App.5th 1128, 1152-1159 [elements].) That said, defendants present no evidence that a criminal proceeding has been filed against defendants or that such a proceeding is forthcoming, likely, or even probable. (See Rodriguez Decl., in passim.) Indeed, there is no indication that a criminal investigation of defendants has taken place to date (see *ibid*.), despite the fact that plaintiff's ex-wife allegedly abducted L.C. well over a year ago in January 2025, plaintiff reported the abduction to the Orange County District Attorney's (DA) Child Abduction Unit in February 2025, and plaintiff has been working with law enforcement and other authorities to locate his daughter since January 2025 and continuously to this day. (See FAC ¶¶ 22-23, 26; Catena Decl. ¶¶ 6-8, 18, 23-24, Ex. I.) At the same time, there is also no end in sight as to defendants' claim of potential criminal exposure. L.C. is still very young (see Catena Decl. at Exs. A, U) and plaintiff's ex-wife has continued to conceal and detain her with defendants' alleged continued assistance for well over a year now, despite court orders requiring the ex-wife to return the child to plaintiff and the fact that plaintiff has had sole legal custody of L.C. since at least March 2025. (See *id*. ¶¶ 5, 18-25, Ex. A.) Further, the requested blanket stay would thwart plaintiff's ability to use civil discovery directed at others to aide in his claims. While it is true that defendants' Fifth Amendment rights are theoretically implicated in this case, given the lack of any

		evidence that the DA is even considering initiating an investigation against them, the lack of any certainty as to how long they may face theoretical criminal liability (potentially until L.C. reaches adulthood), plaintiff's interest in proceeding expeditiously with this litigation, the convenience of the court in the management of its cases, the existence of other types of evidence that plaintiff may rely on to prove his claims, and the fact that defendants can still raise objections based on their Fifth Amendment rights to specific discovery requests as the case progresses—a blanket stay of the litigation or discovery is not warranted at this time. And the court need not craft a narrower stay. The court can address any specific Fifth Amendment issues with appropriate orders if and when they arise (e.g., on a motion to compel/quash discovery, etc.) and can also revisit the issue in the event the circumstances change, such as evidence of a criminal investigation being initiated into defendants. (See *Avant, supra*, 79 Cal.App.4th at pp. 886-889; *People ex rel. Harris v. Rizzo, supra,* 214 Cal.App.4th at p. 952.) The case management conference is continued to October 5, 2026 at 9:00 a.m. in Department C28. Defendants shall give notice of this ruling.
64.		
65.		